

EXHIBIT D TO DECLARATION

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WINSTON HILLS

Development Guidelines

For:

Preston Street Midsouth

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CHAPTER 1 INTRODUCTION

Winston Hills, a Preston Street-Midsouth planned community of 95 acres, is located in northeast Hendersonville, TN in Sumner County. The site is approximately 15 miles North of downtown Nashville and is accessed via the Vietnam Veterans Highway and Gallatin Road.

The *Winston Hills* community will consist of 224 single family detached homes located within five distinct neighborhoods or "villages". These villages are clustered around *Winston Hills Parkway*, a two lane divided roadway with heavily landscaped median and shoulders that acts as the central organizing element of the community plan.

These design guidelines are to serve as a minimum set of design principles and standards for the community. They clearly outline, illustrate and define desired design objectives which will achieve the high quality, desired character and style of *Winston Hills*. It is intended that these guidelines be used by any builder or owner within *Winston Hills* so that *Winston Hills* will become an attractive, cohesive and functional environment in which to live, work and play.

The design guidelines are intended to supplement other documents requiring compliance, such as the Master Development Plan and the Declaration of Covenants, Conditions and Restrictions. A **Design Review Committee (DRC)** has been established to assist in implementation of the design guidelines and to insure individual builder/owner compliance and compatibility.

CHAPTER 2 WINSTON HILLS GENERAL DEVELOPMENT PLAN

Winston Hills is a planned residential community located on 95 acres of rolling, pastoral countryside in northeast Hendersonville, Tennessee. The property was part of the former Johnny Cash and June Carter Cash estate located on the banks of Old Hickory Lake in Sumner County.

The key concept behind *Winston Hills* is to develop a quality oriented residential community which offers a diversification of lot sizes within the context of a master planned community.

2.1 The Site

Winston Hills is located at the intersection of U.S. Highway 31E (locally known as Gallatin Road, Johnny Cash Parkway or East Main Street) which forms its northern boundary and Caudill Drive, which forms its western and southern border. It is located directly across Hwy. 31E from Saundersville Road with +/- 1250 linear feet of frontage on Hwy. 31E. The majority of its eastern boundary adjoins undeveloped property, presently owned by Johnny Cash and June Carter Cash, which is used as a nature preserve at the time of this documentation.

The site is gently rolling pasture land with moderate to steep side slopes in the areas of natural drainage. Approximately seventy-five percent of the total area is open field and pasture with the remaining land covered in thick stands of hardwoods which are associated primarily with the steeper slopes. The rolling terrain offers long views within and off site with glimpses of Old Hickory Lake to the south.

An existing pond, located adjacent to Caudill Lane at the sites southern boundary, will be preserved and enhanced for the permanent enjoyment of the *Winston Hills* residents.

2.2 The Plan

The *Winston Hills* site plan is based on the concept of individual neighborhoods or "villages" clustered around a central spine, Winston Hills Parkway, which serves as the primary organizing element of the community. Each village will reflect its own identity through diversification in lot sizing and product type, entrance gateways and landscape treatment yet maintain and exude a cohesive image to establish itself as the premier community in the Hendersonville market.

Village I, bounded by Gallatin Road to the north, Caudill Lane to the west and Winston Hills Parkway to the south and east, will offer eighty-two lots, averaging 9,500 square feet in size with two village entrances onto Winston Hills Parkway.

Village II is comprised of forty-six lots, averaging 10,800 square feet in size with one entrance onto Winston Hills Parkway. This village is bounded by Winston Hills Parkway to the north, Caudill Lane to the west, Village III to the south and Village V to the east. The southeast corner of this village has frontage on *Winston Hills* lake and open space.

Village III contains eleven lots with each home having direct access onto Caudill Lane at the southern boundary of the community. The majority of these sites, averaging 15,000 square feet in size, offer views off-site to Old Hickory Lake.

Village IV, located in the northeast quadrant of the community and bounded by Gallatin Road to the north, Winston Hills Parkway to the west, Village V to the south and off-site residentially developed land to the east offers thirty-six home sites, averaging 11,000 square feet in size and one entrance onto Winston Hills Parkway.

All home sites described above will have direct access to public streets with a typical fifty foot right-of-way section and four foot wide concrete walks on each side of the street.

Village V is the only private village in the *Winston Hills* community. Access to each home site will be via a gated and security controlled entrance off of Winston Hills Parkway on privately maintained streets. The majority of these home sites lay within the moderately to steeply sloped portion of the site that enjoys dense hardwood tree coverage. Lots sizes vary but generally are within the 17,000 square foot range.

This Village is bounded by Village IV and Winston Hills Parkway to the north, Village III to the west, off-site residentially developed land to the south and the undeveloped Cash property to the east. This Village also enjoys direct access to *Winston Hills* lake and its associated open space.

All Villages will enjoy a comprehensive system of pedestrian walks, on each street within the community, and paths within the *Winston Hills Lake* and open space area. A street tree planting program will be implemented with different varieties planned for each Village. Designer series streetlights, mailboxes and signage fixtures will compliment and add cohesive elements throughout *Winston Hills*.

2.3 Streets

All streets in *Winston Hills* will be dedicated public streets maintained by the City of Hendersonville with the exception of Village V, the gated community, which will be private and owned/maintained by the Winston Hills Homeowners Association. All streets are designed to City of Hendersonville construction standards. Streets will typically be twenty-eight (28) feet back of curb to back of curb in width with a fifty (50) foot right-of-way for all internal streets. Winston Hills Parkway will have two divided lanes measuring twenty-two (22) feet back of curb to back of curb in width with an eighty-six (86) foot right-of-way. All streets shall have pedestrian sidewalks on both sides of street.

2.4 Utilities

The following summarizes the planned public utility providers for *Winston Hills*. All utilities will be underground.

Water System White House Utility District, telephone 615-672-4110, will provide public water service to *Winston Hills*.

Sanitary Sewer System Hendersonville Utility District, telephone 615-824-3717, will provide public sewer service to *Winston Hills*.

Power Nashville Electric Service (NES), telephone 615-736-6900, will provide electrical service to *Winston Hills*.

Gas Nashville Gas, telephone 615-734-0665, will provide natural gas service to *Winston Hills*.

Telephone BellSouth, telephone 800-789-9025, will provide telephone service to *Winston Hills*.

Cable Television Intermedia, telephone 615-824-8543, will provide Cable Television service to *Winston Hills*.

CHAPTER 3 DEVELOPMENT GUIDELINES

3.1 General Purpose and Intent of Guidelines

The development guidelines for *Winston Hills* provide a framework for coordinated development and integration of various site aspects to create a cohesive, architecturally pleasing community. Through the use of these design guidelines it is intended that elements of the natural landscape will be integrated with specific site design to establish a unified and environmentally sensitive place to live.

3.1.1 Conformity with Design Guidelines

These guidelines are supplemental to the Declaration of Covenants, Conditions and Restrictions for *Winston Hills* and any participating builder agreement. Noncompliance with these guidelines is grounds for disapproval of plans.

3.1.2 General Responsibilities

The Master Developer is responsible for providing a hierarchy of public streets, amenities, drainage facilities and infrastructure of all utilities to the lot. The sites are delivered as lots recorded and approved on subdivision plans.

The builder/owner is responsible for developing and maintaining individual lots in a manner prescribed in the Declaration of Covenants, Conditions and Restrictions, other participating building/owner agreements executed with the Master Developer, and these design guidelines. In addition, compliance is required with any applicable state, county or local ordinances including, but not limited to, subdivision ordinance, engineering and building standards, and state and federal wetlands regulations.

Any and all development of homes or lots must first be approved by the Development Review Committee (DRC) prior to commencing construction. Complete plans and specifications, as outlined in Chapter 4, must be submitted to the DRC for review and action.

3.2 General Lot Standards

Winston Hills is approved as an R-15 Cluster development under the Zoning Ordinance for the City of Hendersonville, TN. These guidelines for building setbacks have been established to meet or exceed the R-15 District requirements as outlined in the Zoning Ordinance. Generally, building setback lines for residences are as illustrated in this section for each village as outlined below.

Some variations may occur on a lot by lot basis. Setbacks can be affected by utility or landscape easements. Each lot must be individually reviewed for its specific setbacks.

Section 3-306 of the Zoning Ordinance for the City of Hendersonville, TN address's permitted obstructions in required yards. Such obstructions may be permissible within required yards subject to review and approval by the DRC.

- Encroachment of any residential structure or accessory structure is prohibited within any utility and/or landscape easement.
- Every single family lot is required to have enclosed parking for two standard size vehicles.
- All streets within *Winston Hills* are planned for sidewalks on both sides of the street.

3.2.1 Village I

- The minimum front yard for residential structures is thirty (30) feet from the street R.O.W. line in all cases. Each zone lot shall be a minimum width of 75' at the building setback line.
- The side yard setback is a minimum of ten (10) feet. When structures are adjacent to other dwelling units, at least twenty (20) feet of separation must be provided at all times. When side yards front on streets (i.e.: corner lots) or open space areas, a fifteen (15) foot side yard setback is required, including roof overhang.

Driveways running parallel to a side lot line must maintain a minimum five (5) foot setback from the side lot line.

- The rear yard setback shall be a minimum of twenty-five (25) feet in all cases, except for rear yards on the exterior boundary line adjacent to *Winston Hills Parkway*, Gallatin Road (Johnny Cash Parkway) and Caudill Lane in which case the rear yard setback must be a minimum of thirty-five (35) feet. This includes secondary accessory structures (garages, guest houses, etc.), swimming pools (edge of water) and raised decks.

3.2.2 Village II

- The minimum front yard for residential structures is thirty (30) feet from the street R.O.W. line in all cases. Each zone lot shall be a minimum width of 75' at the building setback line.
- The side yard setback is a minimum of ten (10) feet. When structures are adjacent to other dwelling units, at least twenty (20) feet of separation must be provided at all times. When side yards front on streets (i.e.: corner lots) or open space areas, a fifteen (15) foot side yard setback is required,

including roof overhang.

- Driveways running parallel to a side lot line must maintain a minimum five (5) foot setback from the side lot line.
- The rear yard setback shall be a minimum of twenty-five (25) feet in all cases, except for rear yards on the exterior boundary line adjacent to Caudill Lane in which case the rear yard setback must be a minimum of thirty-five (35) feet. This includes secondary accessory structures (garages, guest houses, etc.), swimming pools (edge of water) and raised decks.

3.2.3 Village III

- The minimum front yard for residential structures is fifty (50) feet from the street R.O.W. line in all cases. Each zone lot shall be a minimum width of 75' at the building setback line.
- The side yard setback is a minimum of fifteen (15) feet. When structures are adjacent to other dwelling units, at least thirty (30) feet of separation must be provided at all times. When side yards front on streets (i.e.: corner lots) or open space areas, a twenty (20) foot side yard setback is required, including roof overhang.

Driveways running parallel to a side lot line must maintain a minimum seven foot six inch (7.5') setback from the side lot line.

- The rear yard setback shall be a minimum of thirty (30) feet in all cases. This includes secondary accessory structures (garages, guest houses, etc.), swimming pools (edge of water) and raised decks.

3.2.4 Village IV

- The minimum front yard for residential structures is thirty (30) feet from the street ROW line in all cases. Each zone lot shall be a minimum width of 75' at the building setback line.
- The side yard setback is a minimum of ten (10) feet. When structures are adjacent to other dwelling units, at least twenty (20) feet of separation must be provided at all times. When side yards front on streets (i.e.: corner lots) or open space areas, a fifteen (15) foot side yard setback is required, including roof overhang.

Driveways running parallel to a side lot line must maintain a minimum five (5) foot setback from the side lot line.

- The rear yard setback shall be a minimum of twenty-five (25) feet in all cases, except for rear yards on the exterior boundary line adjacent to *Winston Hills Parkway* in which case the rear yard setback must be a minimum of thirty-five (35) feet. This includes secondary accessory structures (garages, guest houses, etc.), swimming pools (edge of water) and raised decks.

3.2.5 *Village V (Gated Community)*

- The minimum front yard for residential structures is forty (40) feet from the street R.O.W. line in all cases. Each zone lot shall be a minimum width of 75' at the building setback line.
- The side yard setback is a minimum of twenty (20) feet in all cases. When structures are adjacent to other dwelling units, at least forty (40) feet of separation must be provided at all times. When side yards front on streets (i.e.: corner lots) or open space areas, a twenty (20) foot side yard setback is required, including roof overhang, with the exception of the gated community which shall have a twenty (20) foot side yard.

Driveways running parallel to a side lot line must maintain a minimum ten (10) foot setback from the side lot line.

- The rear yard setback shall be a minimum of twenty-five (25) feet in all cases, except for the following: (1) rear yards on the exterior boundary line adjacent to *Winston Hills Parkway*, in which case the rear yard setback must be a minimum of thirty-five (35) feet; and (2) rear yards abutting common open space pond area, in which case the rear yard setback must be a minimum of forty (40) feet. This includes secondary accessory structures (garages, guest houses, etc.), swimming pools (edge of water) and raised decks.

3.3 *General Site Layout for Specific Lot Conditions*

3.3.1 *Lots at Village Entrances*

Lots at a village entrances are ones that are typically bounded on three sides by public streets (and/or open space), one of which is *Winston Hills Parkway*. These lots shall adhere to the front, side and rear yard requirements outlined above for that particular village.

Driveways and garages are not allowed on the side of the lot adjacent to the village entrance street and must be placed on the opposite side of the lot.

3.3.2 Corner Lots

A corner lot is a lot bounded on two sides by two public streets. Corner lots in each village shall adhere to the front, side and rear yard requirements outlined above for that particular village.

If the rear lot line of a corner lot is also the side lot line of an adjacent lot then the street side lot line of the corner lot must be at least 50% of the required front yard setback for the adjoining lot.

Garages located on the side of the lot adjacent to the side yard street and loading from the side yard street must be setback a minimum of twenty five (25) feet from the side lot line. Driveways are not allowed to run parallel with the side of the lot adjacent to the side yard street.

3.3.3 Through Lots

A through lot is a lot whose front and rear yards abut a public street. Typically, these lots have rear yards adjacent to *Winston Hills Parkway*, *Gallatin Road* or *Caudill Drive*. Through lots in each village shall adhere to the front, side and rear yard requirements outlined above for that particular village.

As part of the overriding theme of *Winston Hills*, the Master Developer will be responsible for the design and installation of landscape screening/buffering within the common open space along *Winston Hills Parkway* and *Gallatin Road* and within the rear yards of those lots abutting *Caudill Drive*.

Based upon this desire to provide adequate and desirable screening/buffering for these lots, the following shall apply:

- 1) A common open space ranging in depth from fourteen (14) to eighteen (18') feet exists parallel and adjacent to *Winston Hills Parkway*. Plant material (existing and newly planted) within this area shall be protected at all times during construction operations. This area shall remain open for access and maintenance by the **Winston Hills Homeowners Association**.
- 2) A thirty (30) foot common open space exists parallel and adjacent to *Gallatin Road*. In addition, a ten (10) foot common landscape and access easement shall exist within all rear yards of lots with rear yards facing *Gallatin Road*. Plant material (existing and newly planted) within this area shall be protected at all times during construction operations. No obstructions or appurtenances (fences, play structures, etc) shall be permitted within this easement. This area shall remain open for access and maintenance by the **Winston Hills Homeowners Association**.

- 3) A twenty (20) foot common landscape and access easement shall exist within all rear yards of lots with rear yards facing Caudill Road. Plant material (existing and newly planted) within this area shall be protected during construction operations. No obstructions or appurtenances (fences, play structures, etc) shall be permitted within this easement. This area shall remain open for access and maintenance by the **Winston Hills Homeowners Association**.

3.3.4 Lot Abutting Common Open Space

A lot abutting common open space is any lot which has a rear yard or side yard adjacent to common open space or a community amenity area such as a park. A lot abutting common open space may also be an interior lot, a corner lot or a through lot. Lots abutting common open space in each village shall adhere to the front, side and rear yard requirements outlined above for that particular village.

Since the backyards of these lots will be in view of those using the common open space, the back yards must be treated in a similar manner to the front yards. Planting, fencing and etc. will require approval of the DRC. Dog houses, wood piles, storage areas etc. are all to be screened from view with privacy fencing or approved landscaping.

3.4 Typical Village Street

3.4.1 Typical Village Street Layout and Maintenance

Residential streets within *Winston Hills* are within a fifty (50) foot right-of-way. The street is twenty-eight (28) feet wide from back of curb to back of curb. Certain utility lines may fall within the street right-of-way.

The **Master Developer** is responsible for construction of all streets and associated utilities. Street paving maintenance will become the responsibility of the City of Hendersonville upon acceptance of roadway dedication, except for roads within Village V (Gated Community) which are private.

Maintenance of the area between the back of the curb and a single family lot property line is the responsibility of that lot's builder/owner and must be performed in the same manner as the rest of the front yard.

The builder/owner shall escrow a lump sum of \$500.00 per lot to be used for street-tree planting within each village. The **Master Developer** will install the trees in each village after the homes in a given area are substantially finished.

3.4.2 Sidewalk Requirements

The individual builder is responsible for constructing a five (5) foot sidewalk along all public street frontage as indicated on the engineering plans. Corner lots and some through lots will require the builder to construct a sidewalk on all sides as well as the handicap ramp to the corner. The sidewalk is to run parallel to the curb and the property line. All sidewalks are to be constructed with consistent quality workmanship and to meet the regulations of the City of Hendersonville.

Locations of sidewalks are not to be varied except where required to avoid specimen trees or utility obstructions and only upon approval by the DRC. Gentle curves and radii are required for transitions instead of abrupt angles or sharp curves.

Complete pours between expansion joints are required. No cold joints are permitted.

Manholes, water meter and valve boxes shall not be located within any sidewalk.

3.5 Driveways

3.5.1 Requirements

The builder is required, as a minimum, to build a concrete driveway from the back of street curb to the garage. Asphalt driveways are prohibited. Typically, the curb is a roll type curb where no break in the curb is required.

Concrete driveways are to be a minimum of four (4) inches thick over a compacted aggregate base. Expansion joints between the back of curb and driveway are required. The driveway is to meet flush with the curb. Tooled joints are to be a minimum 3/4" deep. No expanse in pour is allowed greater than 10' in any direction without a control joint.

3.5.2 Use of Specialty Paving Materials

The use of stamped and/or colored concrete, concrete pavers and brick pavers is encouraged. Color, pattern and design should coordinate with and complement the architecture. All specialty pavement shall terminate at the back of and flush with an imaginary extension of the concrete sidewalk (described in section 3.4.2 above) across the driveway. The use of specialty paving materials will require the approval of the DRC.

3.5.3 Alternative Driveway Designs

Alternative driveway designs, such as motor courts, circular drives, etc. may be incorporated into the lot plan to provide additional visual interest.

Motor courts at the front entry are encouraged, especially in villages with wider lots. Where sufficient lot width exists, circular drives are allowed.

Any driveway design shall not cover more than 25% of the available front yard area. The remaining 75% must be maintained for grass/landscaping. The DRC will grant a variance to this requirement for side loaded garages located on the front of the home which incorporate a swing driveway.

The driveway can never abut the main building foundation except as necessary to enter the garage. A minimum landscape strip of two (2) feet is required when the driveway is adjacent to the main building foundation.

On lots one hundred (100) feet in width or wider and/or lots which have setbacks greater than thirty (30) feet, the builder/owner is required to incorporate a curvilinear, meandering driveway layout unless site constraints or existing vegetation prohibit such layout.

3.6 Garages

3.6.1 General Garage - Lot Relationships

Two-car garages are minimally required for all residences within *Winston Hills*.

The placement of garages and driveways has a great effect on the overall street scene aesthetics and on the architectural interest of each specific building. A street scene with emphasis on residences instead of garages and driveways is more visually interesting. For that reason certain garage placements on a lot are discouraged.

In general, rear loaded or side loaded garages are encouraged and preferred over front loading garages.

Front loaded garages protruding from the front elevation of the residence are the least desirable and are discouraged. This arrangement defines the garage as the strongest design element of the house and creates a street scene with the garage as the prominent feature, thereby paying homage to the automobile versus the home and neighborhood.

3.6.2 Front Loading Garages

Where lot size or site constraints, as determined by the DRC, prohibit the incorporation of side loaded or rear loaded garages, the builder may incorporate a front loading design based on the following guidelines:

- Garage facade, at a minimum, must be flush with the front facade of the house excluding porches and stoops. A minimum setback of two (2) feet from the front

facade of the house is encouraged. Variances to this guideline shall be at the discretion of the DRC.

- The garage should be well integrated into the overall design of the house and should not destroy the house symmetry.
- Individual doors are required for each vehicle (2 minimum). A single door serving both cars is permissible in Village I only. All doors are to incorporate minimum 2-lite window designs and shall be void of reflective film or foil.
- The color of the door shall match the adjacent wall or trim.
- These standards apply to all side loaded garage configurations for corner lots where the garage is facing a public right-of-way.
- Carports are expressly prohibited.

3.6.3 Garages on Corner Lots

Side loaded garages on corner lots where the garage door faces a public right-of-way must follow the guidelines for front loading garages outlined above.

3.6.4 Rear and Side Loading Garages

Rear and side loading garages which do not face a public right-of-way may waive the following guidelines outlined above for front loading garages:

- Face of garage flush with house facade.
- Individual doors servicing each car
- Door lite window panel

3.7 Grading and Drainage

In general, the builder is responsible for conducting all grading and construction operations in a neat, orderly and timely way. Streets are to be left clean and free of dirt and debris. Any work previously done (within rights-of-way, common open space or other lots, etc.) which is damaged by the builder/owner (cable cuts, broken curb, street paving, right-of-way grading, drainage, landscaping, etc.) shall be promptly repaired. Lot grading may not alter existing right-of-way or landscape easement grading. Smooth transitions should be made from lot grades to adjacent lots, common open space and right-of-way.

3.7.1 Positive Drainage Requirements

The builder/owner must indicate the general grading and drainage concept on the site plan for each lot and must submit this plan to the DRC for approval prior to initiating grading operations.

The builder/owner is responsible for providing positive drainage away from the house and is responsible for not concentrating and discharging stormwater as a point source from one lot to any other lot or area within *Winston Hills* unless it is to a prescribed drainage area, drainage ditch or drainage pipe as indicated on an overall plan.

The builder is responsible for attempting to use and preserve natural drainage ways to the extent possible, and for preserving existing trees where possible. The builder/owner is responsible for restoring any damage done to the existing drainage patterns within the right-of-way.

Any natural drainage way traversing a lot will be assumed by the builder/owner to continue to carry runoff water after construction of all homes within the development. As such, the builder/owner is responsible for maintaining or rerouting any natural drainage ways traversing his lot in the process of grading his lot and siting his house. Additionally, the builder/owner must take into account the extent of potential upstream runoff when re-routing and/or maintaining the natural drainage course through his lot.

Roof drainage must be handled so as to not create an erosion problem, negative drainage situation or runoff across pedestrian walks and paths in a concentrated manner. Gutters and downspouts are encouraged for all residences in *Winston Hills* and, if incorporated, must provide positive drainage away from the building.

French-type drains must have a positive slope away from the building and must drain to daylight.

3.7.2 Erosion Control Requirements

The builder/owner is responsible for providing erosion control measures for any denuded lot or portion thereof and is required to comply with the minimum standards of the City of Hendersonville. In no case shall the builder/owner allow eroded soil and debris to leave an individual site. If erosion control measures break or are destroyed prior to the site having vegetative cover, the erosion control device shall be immediately repaired. The erosion control concept must be shown on the site plan submitted to the DRC for approval.

3.7.3 *Special Grading Situations*

In general, steep slopes of greater than 3:1 (33% grade) should be broken with retaining walls or terraces. If the height is excessive, two retaining walls should be used, separated by a planting area. Steep slopes greater than 3:1 (33% grade) may be allowed in special conditions when reviewed and approved by the DRC.

The builder is encouraged to terrace large graded slopes less than 3:1 (33% grade). Terraced lawns, especially in front yards, are encouraged.

Swales are to be graded shallow but wide to slow run-off. Steep abrupt cuts are to be avoided. A minimum 2% slope should be maintained along the swale centerline to ensure positive drainage.

Transitions back to natural grade should be smooth.

Berms within front yards are prohibited. Berms are to be graded in gentle, undulating, "naturalistic" shapes; not as straight mounds with steep slopes. Berms should not be higher than 36" above average finished grade within the immediate area. In no case should a berm be placed in such a way as to obstruct the site triangle of any public street or the site triangle for a driveway entering a public street.

Sidewalks within street right-of-ways shall run horizontally with the grade of the road and have a maximum cross slope of 2% as required by the City of Hendersonville.

Driveways shall be graded with a maximum twelve (12) percent slope and have a maximum five (5) percent transition gradient at the top and bottom. Any deviation must be preapproved by the DRC.

Building pads should be graded so as to have a positive, slightly perched elevation to the street wherever possible.

3.8 *Tree Protection*

The protection of healthy stands of mature trees throughout the wooded areas of *Winston Hills* is a high priority to the overall design concept, therefore the builder is encouraged to save areas of trees within individual lots whenever feasible.

The builder shall, as part of the required individual lot site plan submittal to the DRC, indicate all trees on site 6" DBH (diameter breast height) or greater and those trees proposed to be removed. The DRC recognizes that all trees can not be saved in all situations, but every effort should be made to save every tree possible.

3.8.1 *Tree Protection Methods*

In order to protect the root system of a tree and the surrounding soil structure, the critical root zone area must be protected from damage and compaction during construction. Although a tree's roots extend well beyond the tree canopy area, the critical root zone can be considered to be within the canopy's drip line. Protection of this area from grading, compaction or the spilling of caustic chemicals is necessary to ensure that the healthy life of the tree(s) continues.

In general, trees left in large clusters with the existing understory intact increase the trees' survival chances. Removal of the understory is allowed if necessary but a natural mulch area with native type plantings as an understory should be incorporated.

A continuous temporary fence type barricade should be placed around the drip line of trees to be saved. No storing of machinery or supplies shall be placed within the barricade. The barricade must be maintained throughout construction.

Soil shall not be excavated or spread, spoiled or otherwise disposed of within the barricaded area.

Utility should be located outside of tree save areas whenever possible.

Trash fires shall not be permitted under trees.

Preserved trees should be pruned for diseased and dead wood as well as aesthetic shaping.

Site plans submitted to the DRC shall indicate tree preservation areas on the plans and the fence location. The builder/owner is encouraged to fertilize and water tree preservation areas.

3.9 *Architecture*

The architectural guidelines for *Winston Hills* are intended to establish design standards which will form the basis for good creative designs and neighborhood continuity. The guidelines are not intended to limit creativity or to place undue hardships upon the builders in terms of design or construction. The design of each residence should inspire a sense of individuality, while fitting into the texture of *Winston Hills*.

Two key principals should guide the architectural designs for homes at *Winston Hills*:

- Style of house (as manifested in overall proportion and detail) should be consistent throughout, and
- Architectural design should aspire to a community aesthetic, that is, aspire to complimenting the other homes in the community.

3.9.1 *General Responsibility*

The construction of any entry features and masonry walls, fences, landscape planting or other structures within a street right-of-way, development of any common space amenities, streets, cul-de-sacs, islands (including planting), walls and entry graphics at entrances to each village, and public street lighting shall be the responsibility of the **Master Developer**.

The builder/owner is responsible for individual site development and maintenance including the area within the public street right of way (between the back of the street curb and property lines). The owners of corner lots shall be responsible for the right of way for both streets. The builder/owner is responsible for compliance with these design guidelines.

3.9.2 *Streetscape and Site Massing*

The builder/owner is encouraged to create a visually interesting streetscape through the use of varied facades, elevations, materials, colors and arrangements along the street. The **DRC** will not permit homes of substantially similar elevations, details or colors to be built adjacent to or across the street from each other.

Rows of houses with similar elevations, materials and colors, and arrangements on the site are dull and unimaginative. More pleasing arrangements are achieved with a variety of articulated plans which break the rectangular box into interesting three-dimensional shapes with courtyard-like spaces in and around each house. Garage layout (left or right facade relationship) shall vary from house to house on any given street to avoid a monotonous streetscape.

3.9.3 *Elevation and Facade Articulation*

There is no **Winston Hills** "style". However, style should emerge naturally out of good planning, relationship of plan to elevation, form following the function and the honest use of a selected range of materials.

It should be assumed that the houses will be seen from all angles and that there will be a continuity of colors, materials and details on all elevations. However, priority should be given to those sides which are visible from streets and walkways. The most articulated elevations should be those which are in public view.

The exterior elevation should be a combination of planes and shapes designed to be visually interesting.

3.9.4 *Chimneys*

It is recommended that every residence incorporate a minimum of one fireplace. Masonry chimneys are encouraged on all lots. The masonry chimney should be used as a design element with the following considerations:

Placement of the chimney near the front side of the house in a manner conspicuous to the street is preferred.

If placed on an exterior wall, a complementary material should be used.

The height of the chimney should be in proportion to the roofline (within local building code regulations). Chimneys which barely peek above or squat on the roof are not visually bold enough and therefore, are unacceptable.

No exposed metal fireplace flue will be permitted along the facades of homes. Broad, massive chimneys will be encouraged and small, spindly shaped ones will not be approved. Ornamentation through detailing is encouraged. Chimneys must be constructed of brick, stucco or stone. Chimneys clad with siding are discouraged and require approval of the DRC. Direct vent fireplaces are permitted, however, vents located on the facades of homes facing public right-of-ways is discouraged and shall require approval of the DRC.

3.9.5 *Entrances*

The builder/owner is encouraged to incorporate front porches or a formal stoop in their design as a transition from outdoors to indoors.

3.9.6 *Window Openings*

Care should be given to the size, type and organization of all windows. Scattered windows tend to create awkward, face-like shapes and should be avoided. They should never appear like surface "holes" cut into the side of the box. Window placement should be carefully designed to create a balanced composition. They should be sized to be "in scale" and fit the elevation.

The treatment of windows on the side facade of corner lots and rear facade of homes adjacent to public streets shall be given the same treatment as windows on the front facade.

3.9.7 Roof Articulation

Minimum slope on all roofs shall be a 5 in 12 pitch. A combination of roof pitches may be used if they are integrated with the design of the house. Roof style shall be consistent with the style of house. Flat roofs are not permitted.

Large front-facing gables should be avoided unless they are broken into small scale elements. Otherwise, open gables are better facing toward side yards.

Front-facing gables are particularly unattractive when placed over the garage door. The unshielded exposure of garage doors is helped greatly by way of a low roof line over the door. Drain pipes should be of color to match trim or other adjacent material.

Changes in roof geometry are best when accompanied by offsets in plan.

Avoid exposing ends of rafters unless they are 4"x 6" or larger. Use a fascia of at least 1"x 6" size.

The roofs, as an expressive design element, should be kept as visually unobstructed as possible. Vent stacks, roof jacks, power roof ventilators and other necessary roof protrusions should be located away from public view and on the back side of the roof whenever possible (within local building code regulations). All vent stacks and flashing must be painted to match the roof color.

3.9.8 Garage Treatment

In many single family home designs today an inappropriate emphasis is placed on the automobile entrance. This has become a dominant facade element which tends to undermine or destroy the overall character of the home's architecture and scale. It is important to the overall design and feeling of *Winston Hills* that this does not happen. The garage doors should not dominate the facade. When this occurs, the house generally adds little to the overall character of the street and the house entrance is visually overwhelmed. Therefore these guidelines have been developed to minimize the impact of the garage as well as to integrate it into the site.

3.9.8.1 Garage Door Treatment

Roofs over the garage should be as low as possible sloping toward the street. The highest roofs should not occur over the garage due to the added visual emphasis, especially when the doors face the street.

Treatment of detail on garage doors should be consistent with the overall character of the house. This may be accomplished with one or two well placed windows along the top of the garage door and by breaking up the mass with paneled construction.

Two single doors divided by a column are required for all homes facing/loading onto a public right-of-way (this requirement does not apply to Village I). This breaks up the expanse of the door into appropriately scaled architectural elements.

No wood or particle board doors are permitted. All garage doors are to be metal, four panel design and of a color that matches the adjacent wall or trim. Windows are required. No reflective film or foil is permitted on windows.

Please see additional requirements outlined under 3.6.2.

3.9.9 Exterior Treatment and Materials

It is preferred that natural materials be used for exterior treatment. Material should be used with restraint in regard to both color and diversity of materials, generally favoring soft neutral tones. The intent is to create a continuity of materials throughout the community. In general :

- 1) Samples of all finish materials must be submitted to the DRC for approval.
- 2) All buildings must be a minimum of 70% masonry inclusive of windows, doors, and other fenestration to assure a continuity in the type and quality of materials throughout the community. All mortar joints are to be tooled with mortar color complementary to the brick color.

Brick facades are required on all elevations fronting on or facing public roads and right-of-ways. When an offset/cantilever in the building facade occurs at the second story, a change in material to a non-masonry product is permissible.

- 3) Horizontal (lap type) siding is the preferred wood siding. Vinyl siding may be used, but must be of the highest quality and be finished in a noticeable wood grain texture.

Rough sawn siding is discouraged. Plywood and particle board siding is prohibited. Board and batten, vertical or diagonal siding is prohibited.

- 4) All wood must be painted or stained (excluding decks). Naturally weathered wood is prohibited in all cases. Classic paint colors should be used. Bold, primary or unusual colors are prohibited. High contrast trim or material variations should be avoided in favor of those which are chosen to blend all elements into a single idea. Each builder is required to submit a color pallet to the DRC for approval.

- 5) Materials should be used to emphasize planes and volumes. When different materials adjoin, care should be taken to avoid the look of applied facing. No material change will occur on an outside corner. The technique of "shirt fronting" of masonry veneer or other veneer material will not be permitted. Material changes are most successful when made as part of a larger offset; for example, a masonry pier, wall offset, etc.
- 6) Exterior wall studs must be at least 2" x 4".
- 7) The number of primary facade materials on the exterior of the home is limited to two (2), not including roof shingles, in all villages with the exception of Village V which is limited to one (1) material, not including roof shingles.

The following exterior materials may be used:

- BRICK - Medium to dark ranges in earth tone colors are preferred. Painted brick shall be considered on an individual basis.
- STONE - May be used except as a thin veneer or as small disjointed areas of the facade. May be field stone or cut stone. Avoid excessively variegated stone color.
- WOOD SIDING - Stained in earth tone colors if cedar; painted in neutral colors if pine or smooth cedar. Horizontal application only.
- STUCCO
- 5" DOUBLE BEADED VINYL SIDING - May be considered for approval by the DRC by exception only.
- WOOD WINDOWS - Stained or painted. Vinyl clad windows are acceptable. Aluminum windows will not be allowed. The use of "pop-in" muntins is not permitted. Vinyl clad windows will not be allowed in Village V.
- ROOF MATERIALS - Architectural grade asphalt or fiberglass shingles are the preferred minimum standard and are the minimum required in Village V. Standard grade shingles may be acceptable provided they meet or exceed the following specifications:
 - 1) 200# - 250# asphalt impregnated fiberglass
 - 2) Class 'A' fire resistance
 - 3) Minimum 25 year warranty

Natural roofing materials such as slate, tile or shakes are acceptable.

The color of roofing throughout the community shall be of consistent value. The standard color allowed will be "weathered wood" although other colors may be approved by the DRC by exception only.

3.9.10 Roof Top Antenna and Satellite Dish

No exterior antennae, aerials, satellite dishes or other apparatus shall be allowed on any portion of a lot, including any unit, without the prior written consent of the DRC.

3.9.11 HVAC Equipment

No rooftop or window HVAC equipment is permissible. Condensers, gas packs or other external HVAC equipment located on the side of the house must be screened from view with mature shrubs, opaque wood or masonry screens or other compatible building materials. Builders are encouraged to not place this equipment on the sides of lots facing a public right-of-way.

3.9.12 Accessory Structures

All accessory structures must be approved by the DRC. The only accessory structures which may be allowed by right are green-houses, gazebos, trellis shade structures, in ground pools and cabanas. Other accessory structures will be considered by the DRC on an individual basis.

Aluminum screen rooms, structures incorporating some type of corrugated roofing material and storage sheds will not be allowed.

3.10 Lighting

Exterior residential lighting for *Winston Hills* shall be designed to convey a warm, inviting atmosphere and aid in providing night time security. Care is to be taken in placing fixtures and selecting types of light source.

3.10.1 General Responsibilities

The Master Developer is responsible for the installation of street lighting along *Winston Hills* Parkway and all public rights of way within the villages, as directed by the City of Hendersonville, as well as landscape lighting of the projects entry walls, graphics and other landscape features. The street lighting system will use a decorative-type fixture and will be maintained by **Winston Hills Homeowners Association**.

As part of the design theme for *Winston Hills*, the builder/owner shall be responsible for the purchase and installation of a pole mounted gas light of a standard preselected design which shall be located adjacent to the individual lot driveway entrance outside of the street right-of-way. This light is intended to be a unifying element in the design of the overall community. Builder/owner shall indicate the location of this lamp on the site plan submitted to the DRC.

Private lighting installed on individual lots in a manner that does not cause distraction, nuisance or excessive spillover light onto other lots is permissible. Decorative fixtures must be of high quality materials and workmanship and be in scale and style with the residence. All exterior lighting is subject to approval by the DRC.

3.10.2 General Design Standards

Sodium vapor lights are prohibited. Incandescent, low voltage incandescent, metal halide, quartz and natural gas lights are acceptable.

Fluorescent, neon and colored lenses on fixtures are prohibited. Colored light bulbs are only permitted during the traditional holiday season.

Light fixtures are to be located so as to be unobtrusive and should not be visible from the street or other lots. It is recommended that they be mounted on the house. Pole mounted lights are prohibited.

Exterior illumination to accent street address numbers, architectural features such as columns and entries and landscape features are allowed. Spotlights are to be concealed from direct view and directed to avoid light spillover onto adjacent property.

The use of low to the ground driveway lighting that has the effect of a runway is discouraged. Driveway lighting should be soft and strategically placed within landscape areas.

3.11 Site Furnishings, Furniture and Materials

3.11.1 Pools and Spas

Portable or permanent above ground type pools are prohibited. In ground swimming pools and small above ground spas or hot tubs are permitted, provided above ground spas incorporate skirting and landscaping and provided all appurtenances (i.e.: specialty features, sliding boards, skimmer nets and other long handled devices, pool chemicals, filters, pumps, heaters, plumbing etc.) are screened from public view.

All state and local codes pertaining to swimming pools and spas must be met. Privacy screens for pools or spas on lots abutting public streets or common open space must be set back a minimum of twenty-five (25) feet from rear property lines and must not violate the sideyard requirements of each village. Maximum privacy screen height is not to exceed six (6) feet above existing grade. Screening material must be with masonry wall (compatible with the residence), wood fence (with finished side out) or other screening material as may be approved by the DRC.

3.11.2 Decks

Suspended decks are permitted. Unfinished pressure treated wood is permissible. It is encouraged that all decking be stained for maintenance considerations. All vertical support members must match the finish of the decking. Handrails and other appurtenances may match the house trim, etc.

Screened in decks are permitted provided they have a dark gray or black screened mesh or are enclosed with windows and have doors.

3.11.3 Flags

No flagpoles are to be located on residential lots visible from public view. Flags may be displayed on flag staffs attached to residences, but no more than two flags are to be exhibited on any residence at any given time. Flag etiquette is to be observed at all times. Advertising flags are strictly prohibited. Model Homes may use banners and pole mounted flags if approved by the DRC.

3.11.4 Fencing/Walls

It is the intent of these guidelines to insure compatibility of fence design throughout the *Winston Hills* development by providing direction to homeowners for a harmonious use of fence/wall details and materials.

All fencing/walls shall be erected at the option of the builder/owner and shall comply with the regulations of the City of Hendersonville and the special requirements of *Winston Hills* as outlined below. Approval of all fencing/walls by the DRC is required.

Except for fencing/walls by the **Master Developer**, fencing/walls will generally not be allowed within front yards and shall tie into the main structure as least thirty-six (36) inches back from the plane of the front facade. Any fencing/walls proposed for front yards shall be considered for approval by exception only.

In *Winston Hills*, a basic distinction will be observed in the way walls and fences are used. Walls, if used, shall enclose or establish a boundary for the most private portions of the grounds including principal outdoor living areas of the house and immediate yard, manicured gardens, pool/spa area, motor court, etc.

Fences, if used, may also enclose the private outdoor areas but may also enclose the balance of a lot or portion thereof except as outlined under section 3.3 of these guidelines. It is important that fence designs be harmonious throughout the community since they will be a very visible part of the landscape.

No fencing/walls shall be greater than six (6) feet in height, unless approved by exception, and shall be less as specified under certain special conditions.

Fencing/walls on lots abutting common open space shall not exceed four (4) feet in height if located within twenty (20) feet from the rear property line abutting common open space.

All fences shall be post and rail design identical to and consistent with the fence design used in common areas by the Master Developer. Any alternative fence designs shall be considered by the DRC by exception only.

Fence sections may either run horizontally with changes in grade being taken up at the fence post at regular intervals or may slope parallel with the grade. Fence height shall be consistent.

Gates may be installed and shall be designed to be compatible and complementary to the fence design.

A 2x4 wire mesh may be mounted on the inside of the rail fence to secure pets provided its mounting detail is approved in writing by the DRC.

Masonry walls such as brick, stone or stucco should be designed as an extension of the architectural design of the home. These wall designs should be simple yet possess enough detail to avoid the appearance of uninterrupted panels. A watertable and cap are recommended as design features to be included in wall designs.

Only masonry walls consistent with the architectural design of the house will be permitted in the front yard of Village V homes subject to review and approval of the DRC. Such walls shall be set back from the street right-of-way to maintain compliance with all minimum yard setbacks as outline under section 3.2 and 3.3.

Wall sections shall run horizontally with changes in grade be taken up at the column at regular intervals. Wall height shall be consistent.

Gates may be installed and shall be designed to be compatible and complementary to the wall design.

Fencing/walls adjoining lots should either be connected to provide a continuous appearance or shall maintain a minimum seven (7) foot separation. Connecting walls will not be permitted unless the design is identical.

Connections shall be made only at columns.

Fencing/walls shall be setback a minimum of six (6) inches from a property line unless is being connected to an adjacent fence/wall, in which case an easement to construct and maintain fence/wall shall be created and mutually agreed to by the owners.

In the case of separated fencing/walls where the first fence/wall was built to six (6) inches of the property line, the second (proposed) fence/wall must be built six and one-half (6-1/2) feet from the property line or otherwise built to maintain the required seven (7) foot separation.

All fences/walls installed along a side property line abutting a local residential street shall maintain a minimum ten (10) foot landscape buffer between the fence and the edge of sidewalk.

All supplemental landscaping shall be in accordance with the landscape guidelines.

Should existing trees or other obstacles require adjustment to the fence/wall location, the fence/wall shall always be shifted in the direction of the private side.

3.11.5 Garden Ornament

Garden ornaments best described as "kitsch" are not acceptable within public view. Ornaments deemed unacceptable will be required to be removed. In general, painted wood or plastic ornaments are unacceptable. Stone, cast metal, clay or ceramic ornaments are preferred.

Decorations for holidays are acceptable but must not be in place 30 days prior to an event and must be removed 15 days after an event.

Planters of clay or wood are acceptable - especially for displaying seasonal flowers. Natural clay, white, earth tone or pastel colors are acceptable - bright colored planters (blue, orange, etc.) especially of plastic are not permitted.

Garden structures such as trellises, arbors and benches are permitted.

Decorative bollards, decorative lamps, etc. must be approved by the DRC prior to installation.

3.11.6 Mailboxes

As part of the design theme for *Winston Hills*, the builder/owner shall be responsible for the purchase and installation of a mailbox of a standard preselected design which shall be located adjacent to the individual lot driveway entrance at the curb line. This mailbox is intended to be a unifying element in the design of the overall community. Builder/owner shall indicate the location of this mailbox on the site plan submitted to the DRC.

3.12 Landscape Treatment

The landscape treatment for *Winston Hills* is intended to be a unifying element in the design of the overall community, helping to create a strong sense of place. While landscape design throughout common areas will tend to be naturalistic (flowing lines and primary use of indigenous plant material), the design for individual lots should be appropriate to the architectural style of the house and to the scale of the lot.

3.12.1 General Responsibilities

The Master Developer is responsible for landscaping common open spaces, major street corridors and rights of way, project entry features and entries into individual villages. When conveyed to the property owners' association, maintenance of these areas will be by the *Winston Hills Homeowners Association*.

The builder/owner is responsible for landscaping and maintaining all areas on his property (lot) as well as the portion of the street right of way between the property line and the street curb. The owner of the property is to adhere to these guidelines upon and after initial installation.

3.12.2 General Landscaping Requirements

- The builder/owner is required to submit a typical planting plan of each house plan for approval by the DRC. The approved plan must be followed or exceeded.
- All plant materials are to be healthy, quality specimens from a reputable nursery.
- All planting beds are to be mulched with four (4) inches of pine straw, bark mulch or other mulch material typical to the region. The mulch bed must be maintained full depth with a crisp edge at all times. Gravel or rock of any size or color is not permitted as substitution for shrubs, groundcover, mulch or lawns. Plant bed edging, while not required, is acceptable.
- All lawns and plant material must be installed and maintained in high quality.

Plant material that has died and which was planted to meet the minimum landscape requirements of these guidelines must be immediately removed and replaced by the builder/owner (weather permitting).

- Front facade foundation planting beds shall not stop at the front corners where they meet the edge of the house. They shall round the corner and extend six (6) feet minimum beyond the corner.
- Sod is preferred for lawns over seeding. The required lawn grass is tall type fescue varieties. All front yards and side yards facing public right-of-ways shall be sodded.

3.12.3 Street Tree Planting

Street trees within the right of way will be planted by the **Master Developer** with funds escrowed by the builder/owner. Each village will have a different specified species which will be used uniformly throughout the village. Table 3.12.3 indicates the street tree selection.

Village	Street Tree	Spacing
I	Acer rubrum "October Glory" October Glory Red Maple	40' o.c.
II	Acer saccharum "Green Mountain" Green Mountain Sugar Maple	40' o.c.
III	Acer x fremanii "Autumn Blaze" Autumn Blaze Maple	40' o.c.
IV	Acer x fremanii "Autumn Blaze" Autumn Blaze Maple	40' o.c.
V	Tilia cordata "Greenspire" Greenspire Littleleaf Linden	40' o.c.
Parkway	Zelkova serrata "Village Green" Village Green Japanese Zelkova	40' o.c.

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Table 3.12.3

3.12.4 Minimum Residential Tree Planting Requirement

The following minimum tree planting requirements pertain to all non-wooded lots or lots where trees are sparse or do not occur in front yards as determined by the **DRC**. The total quantity of trees indicated per lot for each village must be installed within the front (yard) setback.

- | | | |
|----|-------------|---|
| 1) | Village I | 1 shade tree, 2 flowering accent trees |
| 2) | Village II | 2 shade trees, 3 flowering accent trees |
| 3) | Village III | 3 shade trees, 3 flowering accent trees |
| 4) | Village IV | 2 shade trees, 3 flowering accent trees |
| 5) | Village V | 3 shade trees, 4 flowering accent trees |

Trees are to be machine dug, balled and burlapped, healthy, quality specimen from a qualified nurseryman.

Trees are to be chosen from the accompanying plant list.

Shade trees are to be a minimum 2-2½" caliper measured 6" from the base of the tree.

Flowering accent trees are to be a minimum of 1- 1½" caliper measured 6" from the base of the tree.

3.12.5 Minimum Landscape Requirement

The builder/owner is required to submit a typical planting plan for each home plan as part of the site plan submittal to the DRC.

Although the builder/owner is encouraged to plant more, the minimum landscape requirements, in addition to minimum residential tree requirements (listed above), for each village shall be as follows:

- | | | |
|----|-------------|---|
| 1) | Village I | Five (5) large shrubs (36" height min.) and fifteen (15) medium shrubs (18" height min.) |
| 2) | Village II | Eight (8) large shrubs (36" height min.) and twenty (20) medium shrubs (18" height min.) |
| 3) | Village III | Twelve (12) large shrubs (36" height min.) and twenty-five (25) medium shrubs (18" height min.) |
| 4) | Village IV | Eight (8) large shrubs (36" height min.) and twenty (20) medium shrubs (18" height min.) |
| 5) | Village V. | Fifteen (15) large shrubs (36" height min.) and thirty (30) medium shrubs (18" height min.) |

In general, the builder/owner shall install plants proven to be reliable, vigorous and disease resistant in this area. The following is a list of plant material considered to be appropriate for *Winston Hills*. The intent of the list is to describe a basic pallet of acceptable plants and is not intended to be all-encompassing.

Winston Hills Plant List

Shade and Ornamental Trees

Acer Species	Maple
Betula Nigra	River Birch
Carpinus Species	Hornbeam
Celtis Species	Hackberry
Cercis Species	Redbud
Cladrastis lutea	Yellowwood
Cornus Species	Dogwood
Crataegus Species	Hawthorn
Fraxinus Species	Ash
Gleditsia triacanthos	Honey-locust
Gymnocladus dioicus	Kentucky Coffeetree
Halesia carolina	Carolina Silverbell
Koelreuteria paniculata	Golden Raintree
Liquidambar styraciflua	Sweetgum
Liriodendron tulipifera	Tulip Poplar
Malus Species	Crab Apple
Metasequoia glyptostroboides	Dawn Redwood
Nyssa sylvatica	Black Gum
Oxydendrum arboreum	Sourwood
Platanus Species	Sycamore
Prunus Species	Flowering Cherry

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Acer Species	Maple
Pyrus Calleryana	Bradford Pear
Quercus Species	Oak
Salix babylonica	Weeping Willow
Taxodium distichum	Baldcypress
Tilia cordata	Littleleaf Linden
Ulmus Species \	Elm
Zelkova Species	Zelkova

Evergreen Trees

Cupressocyparis leylandii	Leyland Cypress
Ilex Species	Holly
Magnolia Species	Magnolia
Picea Species	Spruce
Pinus strobus	White Pine
Pinus thunbergiana	Japanese Black Pine
Tsuga canadensis	Canadian Hemlock

Shrubs & Groundcover

Abelia Species	Abelia
Althea Species	Hibiscus
Amelanchier Species	Serviceberry
Azalea Species	Azalea
Buxus Species	Boxwood
Cornus Species	Dogwood (Shrub Form)
Cotoneaster Species	Cotoneaster
Elaeagnus angustifolia	Russian Olive

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Abelia Species	Abelia
Elaeagnus pungens	Autumn Olive
Euonymus alatus 'Compacta'	Dwarf Winged Euonymus
Forsythia Species	Forsythia
Hedera Species	Ivy
Hydrangea Species	Hydrangea
Ilex Species	Holly
Juniperus Species	Juniper (Groundcover)
Kalmia latifolia	Mountain Laurel
Ligustrum Species	Ligustrum
Liriope muscari	Liriope
Ophiopogon japonica	Mondo Grass
Myrica pensylvanica	Northern Bayberry
Potentilla Species	Potentilla
Prunus laurocerasus 'Otto Luyken'	Otto Luyken Laurel
Rhododendron Species	Rhododendron
Rosa rugosa	Rugose Rose
Spiraea Species	Spiraea
Viburnum Species	Viburnum
Vinca Minor	Periwinkle
Weigela Species	Weigela

Plants not included on this list may be used except as follows:

The use of red tip photinia and golden euonymus, because of growth characteristics and susceptibility to disease, is not allowed. Arborvitae, italian cypress, junipers, (other than ground cover varieties) yucca, cactus and rampant growth types of bamboo are not in character with the plant palette and are discouraged and may be cause for rejection of plans.

3.12.6 Corner Lot Planting Requirement

If installed, privacy walls/fences at corner lots are to be softened with landscaping. A ten (10) foot wide landscape strip shall be left between the sidewalk and the fence to allow for adequate landscaping.

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Corner lots with fences on the side yard adjacent to the street must have planting between the fence and the sidewalk. The minimum planting requirements are a medium shrub planted three (3) feet on center along the entire length and small maturing trees planted twelve (12) feet on center along the entire length.

3.12.7 Screening Requirement

Where practical all meters, air conditioning units, etc. are to be placed away from public view, preferably in rear or fenced side yards. In absence of complete yard fencing, meters, air conditioner, etc. must be screened from view.

Shrubs or vines should be placed in front of screens.

Hedges may be used for screens if plants are mature enough and spaced close enough to provide adequate screening. Screening with plants is to be accomplished with the initial installation, not assumed growth at maturity. Staggered spacing of shrubs for hedges makes a good screen.

3.12.8 Plant Bed Edges

Planting bed edging is not required but is encouraged for maintenance purposes and to define the shape of planting beds. Some types of plant bed edging are not in keeping with the overall landscape effect. Plant bed edging should be done in a "quality" way so as to fit in with *Winston Hill's* overall visual quality.

Plant bed edges of concrete scallops, corrugated aluminum, wire wicket fencing, bricks laid on edge above ground, small rocks and railroad ties are unacceptable.

3.13 Irrigation

Installation of an irrigation system by the builder/owner is not required or necessarily recommended. Where one is desired by the Owner, certain basic design standards should be followed.

The builder/owner is encouraged to use a professionally designed and installed system based on responsible water management, such as an underground pressure compensating drip system or a soaker hose type system. Above ground systems waste water unnecessarily.

All backflow preventors or other fixtures associated with the irrigation system should be screened from view.

Automatic controllers are to be placed in a garage or otherwise hidden from view.

If spray irrigation is used, care should be taken to prevent overspray on sidewalks or driveways.

3.14 *Signage and Graphics*

All signs within *Winston Hills* shall be designed to provide consistent reinforcement of the *Winston Hills* character. Signs must communicate not only specific information, but should add to the attractiveness of the area.

3.14.1 *General Responsibilities*

Community graphic identification, entry features, temporary community directional signs and future facilities signs will be the responsibility of the **Master Developer**.

The builder/owner may not erect any signage of his own without prior, written approval from the **Master Developer** unless otherwise excepted below.

The **Master Developer** may elect to furnish lot identification signs for the sake of establishing continuity to a lot signage program. In such case, it will be the builder's responsibility to furnish application stickers or supplemental signage to indicate specific information about a particular lot and builder. This information may include the builder's name, phone number, lot and block number and whether the lot is sold. Builder/owners must however coordinate with the **Master Developer** on the design and placement of any such application stickers.

Signage for use by the builder for other purposes must be preapproved by the **Master Developer**.

Homeowners reselling their homes are entitled to put one (1) "For Sale" sign of standard size conveying the name of the owner (if desired) listing agency and agent (if applicable) and telephone numbers (two maximum).

It is the responsibility of builders and homeowners to maintain any permitted signage in a neat, attractive manner. Any signage which is not maintained properly is subject to removal.

Permanent builder project signs and "bandit" signs will not be permitted within *Winston Hills*.

All signage within *Winston Hills* will use type face or such type face as established by the **Master Developer**, except individual builder permitted signs, unless otherwise permitted by the **Master Developer**.

Sign colors are to be selected to enhance quality. Bright orange, bright yellow and day glow colors are not acceptable. Color samples shall be included to the **DRC** submittal prior to constructing signs.

3.14.2 Project Logo

All uses of the project logo by parties other than the **Master Developer** are prohibited without prior written approval of the **Master Developer**. The use of the logo and logotype for advertising and marketing material is encouraged. A photoready copy of the artwork may be obtained from the **Master Developer**.

3.15 Model Home Area and Sales Office

Selection of all model home lots must be approved by the **Master Developer**. Model home lots are to be selected for best visibility.

With the exception of sales offices in a garage, the models should be presented as much as possible as the finished project would be sold. Sidewalks should meander between the units.

Gazebos and footbridges in front yards, as large decorative appurtenances, may detract from the model homes and are discouraged. Planters, flower pots, benches and other small decorations can provide a sense of scale and "lived in" appearance. The use of annual flowers is encouraged.

It is expected that landscape planting should exceed minimum requirements for other lots. Plants are to be selected from the plant list in the landscape section of this booklet. The builder/owner shall provide, at his expense, a planting plan for one model lot in each village to serve as an example of the minimum anticipated landscape treatment for each model.

If planting beds are extended from one lot to another to create a park like atmosphere, care is to be taken to not block drainage down side lot lines.

Signage for each model home must be preapproved by the **DRC**. If placed on corner lots, the sign must be located within the property line and within the sideyard setback. The sign can not obstruct site triangles at intersections. All signs are subject to the signage regulations of the City of Hendersonville.

In general, posts or framework are to be concealed or otherwise aesthetically treated. Bases of signs should be enclosed with lattice or other suitable material or screened with shrubs.

Trap fencing is permitted, but must be of the metal picket design listed in these guidelines. Other types of fencing may be given consideration by the DRC if the overall concept of the model home cluster requires variance. Split rail type fencing is not permitted.

Three metal or fiberglass flagpoles, not to exceed twenty (20) feet in height, may be used for each model home cluster. Flags larger than six (6) feet by eight (8) feet are not permitted.

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No advertising flags are permitted.

Exterior lighting is permissible on all model homes but must be designed and function in an appropriate and aesthetic manner as determined by the DRC. The general design standards for exterior lighting outlined under section 3 10.2 shall apply.

Off street parking is permitted. An off street parking lot shall be behind the established front building line and should be contained on one lot. Precautions are to be taken to preserve existing trees on site.

Paving must be hard surfaced, asphalt, concrete, or interlocking concrete pavers. Asphalt paving will require a hard edge border (treated wood, concrete or steel edging). In the absence of concrete curbs, wheel stops must be used.

Parking lanes are to be delineated for an orderly appearance. Parking lots are to be kept free of trash and debris.

The building of model homes and any associated parking lot require DRC approval of site plans.

Model homes shall be converted to standard family residences within sixty (60) days of closing. The DRC is to approve all aspects of conversion. Sales offices must be put back to a condition of typical units in the builder product line, i.e., French doors in garage walls are not permitted to remain but must be bricked in or replaced with operating garage doors or partially bricked and windowed. The conversion must return the model home to conformity with all design guidelines applicable to non-model homes.

CHAPTER 4 SUBMISSIONS AND APPROVAL

- 4.0 Any and all development of parcels or individual lots within *Winston Hills* must first be approved by the **Design Review Committee (DRC)** prior to commencing construction. Complete plans and specifications must be submitted to the **DRC** for review. The review will occur in a timely manner as outlined and will be for compliance with these guidelines. The **DRC** will issue a clear written statement of plan approval or in some cases a statement of why plans and specifications do not meet approval.

4.1 General Responsibilities

The **DRC** is responsible for providing a concise timely review of submitted plans and specifications. Plans and specifications will be reviewed for conformance with *Winston Hills* Design Guidelines and the Declaration of Covenants, Conditions and Restrictions for *Winston Hills*.

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The builder/owner is responsible for conformance with the Design Guidelines and Declaration of Covenants, Conditions and Restrictions. Upon approval by the **DRC**, the builder/owner is responsible for conforming to the approved plan and specifications. Construction of new homes, or additions and alterations, must be reviewed and approved by the **DRC** prior to any construction on any residence. The only exception is interior modifications.

4.2 Submission Requirements

The builder/owner is required to submit complete and accurate design and construction documents for examination by the **Design Review Committee (DRC)**. Submittals are to be made in two phases prior to the construction of any exterior improvement to any lot or parcel. Phase I may be omitted providing the Phase II submittal includes all the information required in Phase I.

Minimum submittal requirements for each phase are as follows: (additional information is encouraged).

Phase I

1. Schematic Site Plan Including:

- a. Site Plan indicating building setbacks, easements, right of way identification and location of trees greater than six (6) inches in diameter at DBH*. (Survey)

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- b. Utility service locations.
- c. Siting of improvements including house, driveway, walks, fences, mailbox, gas light, condensers, etc.
- d. Concept grading plan showing general grade relationships, location and method of sediment and erosion control and delineation of trees to be saved and method.

2. Preliminary Architectural Plans Including:

- a. Floor Plans at a scale of $\frac{1}{4}" = 1' - 0"$ or greater.
- b. Exterior Elevations at a scale of $\frac{1}{4}" = 1' - 0"$ or greater.
- c. Outline Specifications describing all materials to be used on the project.

* DBH is diameter at breast height, measured 6" from existing grade.

Phase II

1. Construction documents and specifications including:

- a. Final architectural and site development plans listed under Phase I above.
- b. Planting plan at a scale of $1" = 10'$ or greater
- c. Final Survey at appropriate scale.
- d. Final Specifications.
- e. Submittals of material samples.

The DRC shall review each submittal and approve or disapprove it in writing with recommend revisions to those aspects of the plans that are inconsistent with the design guidelines. The review and approval process shall not exceed the following time constraints:

Phase I

Schematic Site Plan

10 working days

Preliminary Building Development Plans

Phase II

Construction Documents

10 working days

Each submittal shall consist of three (3) sets of blue-line prints and supplementary material specifications, if not on the drawings. One copy shall be returned to the builder/owner.

Construction shall proceed only after approval of the final set of drawings and specifications. Unapproved changes that occur during actual construction that differ from approved drawings will require alterations at the builder/owner's expense to restore compliance with approved drawings.

No drawings are considered approved unless they bear the DRC's "approved" stamp.

The builder/owner has complete responsibility for compliance with all governing Codes and Ordinances. Approval by the DRC shall not constitute approval by any other agency.

A plan submittal from is available from the Development Review Committee. Plans and Specifications should be submitted to:

Development Review Committee

**Preston Street Midsouth
59 Caudill Drive
Hendersonville, Tennessee 37075**